

to collect the assets (*a*), or deliver to him securities for money which enable him to receive the amount due (*b*).

10. **Executor not answerable for joining where the act is necessary.**— But under particular circumstances the joining of an executor is as absolutely necessary as the joining of a trustee, and of course in such cases executors and trustees are put upon the same footing in respect of liability.

As in bills of exchange held jointly.— Thus, if a bill of exchange be remitted to two agents payable to them personally, who on the death of their principal are made his executors, the mere indorsement of one, after they are executors, in order to enable the other to receive the money, will not operate to charge him who does not actually receive (*c*).

And in transfer of stock.— And so where the joining of both executors is necessary to the transfer of stock (*d*).

11. **Unless the act be with improper view.**— But where the joining of an executor is absolutely indispensable, it is still incumbent on the executor to see that the act in which he joins is perfectly consistent with the due execution of the trust (*e*).

12. **Executor must not depend on mere representation of his co-executor.**— And the executor will not be excused if he rely on the mere representation of his co-executor as to the necessity or propriety of the act, for the executor has imposed upon him at least ordinary and reasonable diligence to inquire whether the representation is true (*f*).

13. **Greater caution required where the testator has been long dead.**— And if, at a period when in the ordinary course

(*a*) *Doyle v. Blake*, 2 Sch. & Lef. 231; *Lees v. Sanderson*, 4 Sim. 28; *Kilbee v. Sneyd*, 2 Moll. 200, *per* Sir A. Hart.

(*b*) *Candler v. Tillet*, 22 Beav. 236, *per* M. R.

(*c*) *Hovey v. Blakeman*, 4 Ves. 608, *per* Lord Alvanley.

(*d*) *Chambers v. Minchin*, 7 Ves. 197, *per* Lord Eldon; *Shipbrook v. Hinchinbrook*, 11 Ves. 254; S. C. 16 Ves. 479, *per eundem*; *Terrell v. Matthews*, 1 Mac. & G. 434, note; see *Murrell v. Cox*, 2 Vern. 570, and com-

pare *Scurfield v. Howes*, 3 B. C. C. 94; (Note, the doctrine at the period of the last case had not been settled); and see *Moses v. Levi*, 3 Y. & C. 359.

(*e*) *Chambers v. Minchin*, 7 Ves. 186; *Shipbrook v. Hinchinbrook*, 11 Ves. 252; *Underwood v. Stevens*, 1 Mer. 712; *Bick v. Motley*, 2 M. & K. 312; *Williams v. Nixon*, 2 Beav. 472; *Hewett v. Foster*, 6 Beav. 259.

(*f*) *Shipbrook v. Hinchinbrook*, 11 Ves. 252, see 254; *Underwood v. Stevens*, 1 Mer. 712; *Hewett v. Foster*, 6 Beav. 259.